

BEFORE THE BOARD OF SOCIAL WORK OF THE STATE OF IOWA

IN THE MATTER OF	)	
THE APPLICATION	)	PRELIMINARY NOTICE OF
FOR LICENSURE OF	)	INTENT TO DENY LICENSURE
	)	
Mandi J. Berlin-Coyle, APPLICANT	)	

TO: Mandi J. Berlin-Coyle

YOU ARE HEREBY NOTIFIED that on November 25, 2008, the Iowa Board of Social Work voted to deny your application for an Iowa license to practice social work at the independent level. The intent to deny licensure is based upon the following:

LEGAL GROUNDS

Iowa Code 154C.1 states:

Master social workers are qualified to perform the practice of bachelor social workers and provide psychosocial assessment, diagnosis, and treatment, including but not limited to performance of psychosocial histories, problem identification and evaluation of symptoms and behavior, assessment of psychosocial and behavioral strengths and weaknesses, effects of the environment on behavior, psychosocial therapy with individuals, couples, families and groups, establishment of treatment goals and monitoring progress, differential treatment planning, and interdisciplinary consultation and collaboration. [Iowa Code 154C.1 #3b]

Independent social workers are qualified to perform the practice of master social workers as a private practice. [Iowa Code 154C.1 #3c]

“Private practice” means social work practice conducted only by an independent social worker who is either self-employed or a member of a partnership or of a group practice providing diagnosis and treatment of mental and emotional disorders or conditions. [Iowa Code 154C.1 #4]

Iowa Code 154C.3 states:

An applicant for a license as an independent social worker shall present evidence satisfactory to the board that the applicant has engaged in the practice of social work, under supervision, for at least two years as a full-time employee or for four thousand hours prior to taking the examination given by the board. [Iowa Code 154C.3 #1c(4)]

645 IAC 280.6(1) states:

The supervised professional practice shall be the equivalent of two years of full-time post-master's social work degree practice at the master's level performing psychosocial assessment, diagnosis and treatment. [645 IAC 280.6(1)a]

FACTUAL CIRCUMSTANCES

The Iowa Board of Social Work received an application for independent level licensure from Ms. Berlin-Coyle on May 2, 2008, based on a supervised experience while employed at the Des Moines Public Schools as a school social worker. The Board requested additional, clarifying information from Ms. Berlin-Coyle on September 2, 2008, and invited her to meet with them at their November 10, 2008, meeting. Ms. Berlin-Coyle did not respond. The Board Administrator contacted Ms. Berlin-Coyle prior to that meeting by telephone and Ms. Berlin-Coyle indicated she would not be able to attend the meeting. She was asked if she would like to reschedule that meeting for the February 2009 meeting date. Ms. Berlin-Coyle indicated she did not wish to meet with the Board and that she may submit something in writing.

Ms. Berlin-Coyle faxed correspondence dated November 3, 2008, to the Board requesting inactive status of her license as she was moving out-of-state. She also requested to withdraw her application as she was moving out of state, stating, "I do understand that the application fee is non-fundable."

The Board met on November 25, 2008, and decided to act on the application as submitted by Ms. Berlin-Coyle, based on her supervised experience at the Des Moines Public Schools. The documentation submitted with the application does not provide sufficient information for the Board to conclude that Ms. Berlin-Coyle was providing diagnosis of mental and emotional disorders or conditions, and providing psychosocial therapy during her two year supervised experience under the supervision of Barbara Faidley. A description of her duties while employed at the Des Moines Public Schools states:

"Assess social, emotional behavior needs, provide individual and group treatment programs, functional behavior assessment, behavior intervention plans, coordinate amongst service providers."

These duties do not include diagnosis and treatment of emotional disorders or conditions, and psychosocial therapy. Ms. Berlin-Coyle also indicates that she was supervised by Steven Gonzalez and Laura Fefchak while employed at the Des Moines Public Schools. However, she provides no **Supervision Report** from either of these supervisors as required.

A description of Ms. Berlin-Coyle's while employed at Children and Families of Iowa states:

"Provide mental health assessment, diagnosis and treatment planning."

It does appear the duties while employed part-time at Children and Families of Iowa may include diagnosis of mental and emotional disorders or conditions and psychosocial therapy. This was discussed with Ms. Berlin-Coyle during a meeting with the Board Executive when she submitted her application in May. However, Ms. Berlin-Coyle has provided no documentation of a supervised practice experience while at Children & Families of Iowa.

NOTICE OF APPEAL RIGHTS

Pursuant to the provisions of 645 IAC 11.32, you may appeal the Board's preliminary notice of denial of license by serving a notice of appeal and request for hearing upon the board not more than thirty days following the date of mailing of this notice. The request for hearing shall specifically describe the facts to be contested and determined at the hearing. The hearing shall be held pursuant to the process outlined at 645 IAC Chapter 11. If an appeal is not filed within this time period, this preliminary notice of intent to deny licensure will become final.

This notice of intent to deny is approved by the board on December 31, 2008.